

Superior Court of California, County of Tuolumne

Consolidated Calendar

Hon: Sarah Carrillo

Department 2 August 28, 2026 8:30 am DA Case # Date Filed

12 CV67641 Bryan Sherbino vs. Sierra Pacific Industries 09/15/2025

Bryan Sherbino

Attorney: Adam Stewart

Sierra Pacific Industries

Attorney: Randall Davis

Motion Hearing - Reconsideration

RESERVED by Def's Counsel

7/8/26 - Reserved by Def's counsel (TF) - spoke w/ Joanne Stevens @ Dunn
& Martinek (sp)

09/15/2025 Complaint

File Tracking

09/19/2025 High Density

This is a personal injury action involving a workplace injury. On June 18, 2026, Commissioner Streger issued an order overruling Defendant's demurrer to the First Amended Complaint. On July 8, 2026, Defendant moved for reconsideration of the Court's order overruling the demurrer. Commissioner Streger is unavailable to hear this motion, as he is no longer employed by this Court and this matter has been assigned to the Honorable Sarah J. Carrillo.

The prior order indicated the Court was treating this demurrer as alleging the complaint does not state facts sufficient to constitute a cause of action, which is permitted under Code of Civil Procedure sections 430.10(e). The Court articulated its decision as set forth in the June 18, 2026, Order Overruling Demurrer to First Amended Complaint. CCP section 1008 requires the moving party to present new or different facts, circumstances or law to support reconsideration of an order, and requires the defendant to provide a satisfactory explanation for the failure to produce the claimed new evidence at an earlier time. Yolo County Dep't of Child Support Servs. v Myers (2016) 248 CA4th 42, 50. The contract was available at the time of the original motion and is not new evidence, nor new facts and the court does not find the reason it was not presented as satisfactory.

Additionally, Defendant has provided exhibits which it argues show that the action is barred by the Worker's Compensation Exclusive Remedy Rule. There is no request for judicial notice of any worker's compensation action or of any other matter the court could take judicial notice of under the Evidence Code. As noted in National Auto Ins. Co. v. Winter (1943) 58 Cal.App.2d 11, 16-17, 136 P.2d 22: " 'Matters of defense not apparent in the pleading are not available upon demurrer. On the hearing of a demurrer, therefore, the court is bound by the facts as alleged in the pleading attacked by demurrer, and it is not entitled to consider facts presented to it through the medium of an affidavit.' " "It is an elementary rule that the sole function of a demurrer is to test the sufficiency of the challenged pleading. It cannot, properly, be addressed to or based upon evidence or other extrinsic matters." (Childs v. State of California (1983) 144 Cal.App.3d 155, 163.)

The Motion for Reconsideration is DENIED.